

1                   **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2                               STATE OF OKLAHOMA

3                               2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE  
5 FOR  
6 HOUSE BILL NO. 3638

By: Gise, **Lawson**, **Pae**, and **Menz**  
of the House

and

**Thompson** of the Senate

11                               COMMITTEE SUBSTITUTE

12               [ food stamps - program - Department of Human  
13               Services - State Department of Education - data -  
14               benefits - implementation - participation -  
15               measures - Summer Electronic Benefit Transfer  
16               Program Revolving Fund - characteristics -  
17               effective date ]

20 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

21               SECTION 1.           NEW LAW           A new section of law to be codified  
22               in the Oklahoma Statutes as Section 241.5 of Title 56, unless there  
23               is created a duplication in numbering, reads as follows:

1       A. Beginning with the 2027 program year, the State of Oklahoma  
2 shall participate in the federal Summer Electronic Benefit Transfer  
3 for Children ("Summer EBT") program as authorized pursuant to the  
4 federal Consolidated Appropriations Act of 2023, to provide  
5 supplemental nutrition assistance to eligible children during  
6 periods when school is not in session.

7       B. The Department of Human Services shall administer the Summer  
8 EBT program and shall submit all applications, plans, and other  
9 documentation required by the United States Department of  
10 Agriculture or any other federal agency necessary to implement and  
11 administer the program in accordance with federal law.

12       C. The Department of Human Services shall coordinate with the  
13 State Department of Education for the purpose of determining program  
14 eligibility and facilitating efficient program administration.

15       D. The Department of Human Services and the State Department of  
16 Education are authorized to share data as necessary to implement and  
17 administer the Summer EBT program, subject to applicable state and  
18 federal privacy and confidentiality laws.

19       E. To the maximum extent permitted by federal law, benefits  
20 issued under the Summer EBT program shall be subject to the same  
21 eligible food restrictions applicable to the Supplemental Nutrition  
22 Assistance Program in Oklahoma. The Department of Human Services  
23 shall seek any necessary federal approvals to align program  
24 restrictions with state policy.

1 F. Implementation of the Summer EBT program shall be subject to  
2 the availability of funds appropriated by the Legislature for the  
3 purpose of administering the program. Should the federal share of  
4 costs for administering the program be reduced from the level  
5 approved for the 2027 program year, the State of Oklahoma shall not  
6 be required to continue participation unless otherwise authorized by  
7 the Legislature.

8 G. The Department of Human Services shall implement program  
9 integrity measures consistent with federal requirements, including  
10 eligibility verification, data matching, and the prevention,  
11 detection, and recovery of improper payments.

12 SECTION 2. NEW LAW A new section of law to be codified  
13 in the Oklahoma Statutes as Section 241.6 of Title 56, unless there  
14 is created a duplication in numbering, reads as follows:

15 There is hereby created in the State Treasury a revolving fund  
16 for the Department of Human Services to be designated the "Summer  
17 Electronic Benefit Transfer Program Revolving Fund". The fund shall  
18 be a continuing fund, not subject to fiscal year limitations, and  
19 shall consist of all monies received by the Department from funding  
20 sources, including, but not limited to, federal funds, state  
21 appropriations, tribal government contributions, municipal or  
22 political subdivision funds, nonprofit or charitable grants, private  
23 or personal contributions, and other public or private sources  
24 authorized by law. All monies accruing to the credit of said fund

1 are hereby appropriated and may be budgeted and expended by the  
2 Department for the purpose of funding administrative costs  
3 associated with the Summer Electronic Benefit Transfer program.  
4 Expenditures from said fund shall be made upon warrants issued by  
5 the State Treasurer against claims filed as prescribed by law with  
6 the Director of the Office of Management and Enterprise Services for  
7 approval and payment.

8 SECTION 3. This act shall become effective November 1, 2026.

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10 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated  
11 03/05/2026 - DO PASS, As Amended and Coauthored.  
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